

VCU326737 Proctor, Dianna Renee vs. Huerta, Javier

County: tulare

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-08-17

Motion: Motion for Leave to File Cross-Complaint

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Re: Proctor, Dianna Renee vs. Huerta, Javier

Case No.: VCU326737

Date: August 17, 2026

Time: 8:30 A.M.

Dept. 9-The Honorable Nathan D. Ide

Motion: Motion for Leave to File Cross-Complaint

Tentative Ruling: To grant the motion; to order the proposed cross-complaint filed no later than ten (10) days from the date of this hearing.

Facts

In this automobile accident matter, Plaintiff Dianna Renee Proctor sues Defendant Javier Huerta.

Defendant answered the complaint on April 9, 2026. Defendant, at that time, did not file a cross-complaint.

On July 6, 2026, Defendant filed this motion for leave to file a cross-complaint for indemnity, contribution and declaratory relief against proposed Cross-Defendant Cathleen Rosenberger. In support, Defendant's counsel states the proposed cross-complaint arises out of the same transaction and occurrence as the complaint, "but was not pleaded earlier as a result of inadvertence." (Declaration of Phillips ¶13.) Further, that "Defense counsel was not fully aware of the facts of this incident at the time of the filing of the answer under after further review of the facts and legal analysis." (Declaration of Phillips ¶17.)

Defendant attaches the proposed cross-complaint as Exhibit A.

No opposition appears to have been filed.

Authority and Analysis

Code of Civil Procedure section 428.50 states:

(a) A party shall file a cross-complaint against any of the parties who filed the complaint or cross-complaint against him or her before or at the same time as the answer to the complaint or cross-complaint.

(b) Any other cross-complaint may be filed at any time before the court has set a date for trial.

(c) A party shall obtain leave of court to file any cross-complaint except one filed within the time specified in subdivision (a) or (b). Leave may be granted in the interest of justice at any time during the course of the action.

Here, no trial date has been set. Further, the cross-complaint is directed at a non-party to this case. No leave is required.

However, the Court under section 428.10 must find that the proposed cross complaint “ (b)...(1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him.” Here, the declaration indicates the indemnity and related claims arise from the same transaction or occurrence.

Therefore, the Court grants the motion and orders the filing of the proposed cross-complaint no later than ten (10) days from the date of this hearing.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.